

Prashant Kumar Singh v. State of U.P.

Allahabad High Court · Division Bench · 16 November 2021 · Writ-C No. 24926 of 2021 · Writ-C No. 24926 of 2021 · **Writ disposed; EE to consider new connection under Clause 4.3**

HEADNOTE

On a petition seeking a mandamus to decide a representation for a new electricity connection amid a family dispute over the house, the Division Bench disposed of the writ by directing the Executive Engineer to consider the claim under Clause 4.3 of the Electricity Supply Code, 2005 and decide expeditiously, preferably within four weeks, after notice and opportunity to all concerned.

FACTUAL SUMMARY

Prashant Kumar Singh sought a new electricity connection, asserting that he and his family were living without power in a house over which there was a family dispute. He had applied to the Executive Engineer, Vidyut Vitran Khand on 17 April 2021 and deposited the requisite fee, and later filed a representation dated 2 September 2021. He approached the High Court for a mandamus directing the Executive Engineer, Vidyut Vitran Khand, Pancham, to decide that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection — consideration of application

HOLDING

The writ was disposed of without deciding entitlement on merits. The Executive Engineer was directed to consider the petitioner's claim for a new electricity connection in light of Clause 4.3 of the Electricity Supply Code, 2005 and to take an expeditious decision in accordance with law, preferably within four weeks of presentation of the order, after notice and opportunity to all concerned. ¶ 1

PRINCIPLE TAGS

clauses-4.1-4.3-4.4-licensee-obliged-to-consider-and-grant-new-connection-speedily-if-no-impediment The Court did not grant or refuse the connection; it required the Executive Engineer to consider the new-connection claim under Clause 4.3 and decide expeditiously after hearing all concerned. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE MERITS TO A NEW ELECTRICITY CONNECTION, INCLUDING THE EFFECT OF THE FAMILY DISPUTE OVER THE HOUSE

Left to the Executive Engineer to consider under Clause 4.3 after notice to all concerned ¶ 1